

Amendment No. 1 to HB1901

Lafferty
Signature of Sponsor

AMEND Senate Bill No. 2339

House Bill No. 1901*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 67-4-2009, is amended by adding the following as a new, appropriately designated subdivision:

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(A) There is credited upon the tax imposed by this part an amount equal to eight cents (8¢) per pound dry weight of spent grain byproduct donated during a taxpayer's tax year by a taxpayer that holds a manufacturer license to brew high alcohol content beer, pursuant to § 57-3-202, a taxpayer that holds a permit to brew or manufacture beer, pursuant to § 57-5-103, or a taxpayer that holds a license or permit to brew or manufacture beer, high alcohol content beer, or substantially similar products in another state;

(B) To receive the credit in subdivision () (A), the donated grain must be used exclusively for agricultural use, including for use in composting or as animal feed, and be donated to a recipient located in this state that is not more than one hundred miles (100 mi.) from the location where the spent grain byproduct was used to produce the beer;

(C) The credit taken pursuant to this subdivision () must not exceed fifty percent (50%) of a taxpayer's liability under this part in any taxpayer's tax year;

(D) Any unused credit may be carried forward in any tax period until the credit is taken; however, the credit must not be carried forward for more than twenty-five (25) years; and

(E) In order to receive the credit, the taxpayer must submit a claim for the credit, along with documentation as required by the department to determine the taxpayer's eligibility for the credit and the amount of the credit.

SECTION 2. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it, and applies to tax years beginning on or after January 1, 2027.